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Department of Public Health & Environment

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Air Pollution Control Division Compliance Order on Consent

Case No. 2025-168

AIRS No. 013-0003

In the Matter of CEMEX Construction Materials South, LLC

I. Introduction

The Colorado Department of Public Health and Environment (“CDPHE”), through the Air Pollution Control Division (“Division”), issues this Compliance Order on Consent (“Consent Order”), pursuant to the Division’s authority under § 25-7-115(3)(b), C.R.S. of the Colorado Air Pollution Prevention and Control Act, §§ 25-7-101 to 1309, C.R.S. (“the Act”), and its implementing regulations, 5 C.C.R. § 1001, et seq (“the Regulations”) with the express consent of CEMEX Construction Materials South, LLC (“CEMEX”). The Division and CEMEX may be referred to collectively as “the Parties.”

II. Statement of Purpose

The mutual objectives of the Parties in entering into this Consent Order are:

1. To establish compliance requirements and criteria for the continued operation of CEMEX’s Portland cement manufacturing facility, known as the Lyons Cement Plant, located at 5134 Ute Highway, Longmont,



Boulder County, Colorado (“Facility”); and

- 2. To resolve the violations of the Act cited herein and in a Compliance Advisory issued to CEMEX by the Division on October 7, 2025.

III. Division’s Findings of Fact and Determination of Violations

Based upon the Division’s investigation into and review of the compliance issues identified herein, and in accordance with § 25-7-115(3), C.R.S., the Division has made the following determinations regarding violations of regulatory, statutory, and/or permit requirements associated with the Facility.

- 3. At all times relevant to the violations cited herein, CEMEX was a Foreign Limited Liability Company in good standing and registered to conduct business in the State of Colorado.
- 4. CEMEX owns and/or operates the Facility.
- 5. The Facility is subject to the terms and conditions of the Colorado Operating Permit Number 95OPBO082, issued to CEMEX on February 1, 2000, last revised on November 17, 2017, and last renewed on February 1, 2025 (“Permit Number 95OPBO082”); 40 C.F.R. Part 63, Subpart LLL - National Emission Standards for Hazardous Air Pollutants from the Portland Cement Manufacturing Industry (“Subpart LLL”); Colorado Air Quality Control Statutes; and Colorado Air Quality Control Commission (“AQCC”) Regulations.
- 6. The following equipment at the Facility in Table 1 below is relevant to this Consent Order:

Table 1: Equipment Description

AIRS Point	Description	Process	Plant ID
006	S014 - Homogenizing Silo S015 - Kiln Feed Silo	Homogenizing & Blending	P006

AIRS Point	Description	Process	Plant ID
007	S016 - Precalciner Kiln	Kiln Burning	P007
008	S017 - Clinker Drag Chains (1 baghouse) S018 - Clinker Cooler (2 baghouses, 1 stack) S023 - 529-25 Drag Conveyor (1 baghouse) S024B - Outside Clinker Drop Hood (1 baghouse, vented to S018 stack through 525-8/9)	Clinker Cooling and Transfer to Storage for Finish Mill	P008
009	S021 - Top of A Frame (Belt 529-30 to 529-63) ¹ S026, S027, S029, S030, S031 - Weigh Feeders 1, 2, 4, 5 and 6 ¹ S024 - #2 Clinker Silo S032 - Bottom of A Frame Transfer ¹ S033 - Gypsum/Limestone from 529-31 belt to Silos S035 - Discharge of 629-3 Belt S039 to S041 - Finish Mill Weigh Feeders ² S038 - Surge Bin ² ¹ stacks vent inside A-Frame ² stacks vent inside mill building.	Clinker and Gypsum/Additive Silos and Weigh Feeders (Storage and Transfer to Finish Mill)	P009
010	S034 - #6 Reclaim Feeder and A-Frame Building S051 - Top of A Frame - Transfer from 529-29 belt to 529-30 belt	Sheltered (A-Frame) Clinker Storage and Reclaim	P010
013	S043 - Cement Storage Silos A10 and A13 S044 - Cement Storage Silo A7 S045 - Cement Finish Silo A2 S046 - Packhouses West and East (Loading Spouts, Baghouses 825-4 and 825-5 vent to a common stack) S048 - Recirculating System	Cement Silos/ Packhouse/ Loadout	P013
025	(Particulate Emissions Only) Drilling, Blasting, Truck Loading/Unloading, Haul Roads (Dowe Flats), Scraper Activities, Grading, Bulldozing, Wind erosion of stockpiles and exposed areas	Dowe Flats and Lyons Quarry - Fugitive Emission Sources	P017

AIRS Point	Description	Process	Plant ID
031	S065 - Finish Mill Separator S069 - Clinker Dust to Finish Mill (SEP project) - vents inside mill room	Cement Finish Mill and Auxiliaries	P012

7. On May 17, 2023, the Division and CEMEX entered into a Compliance Order on Consent to resolve Case No. 2022-195 ("2022 COC"). As described in Paragraph 8 of the 2022 COC, CEMEX failed to maintain and operate all affected facilities including associated air pollution control equipment in a manner consistent with good air pollution control practice for minimizing emissions including routine maintenance of and operational procedures performed on the baghouses in accordance with manufacturer's specifications and/or good engineering practices; limit opacity from AIRS Point 007 to 20% as required; monitor NO_x, CO, SO₂, THC, and volumetric flow using continuous emission monitoring ("CEMS"); monitor Hg emissions as required; employ control measures and operating procedures to minimize fugitive emissions as required; report all deviations as required.

On April 23, 2024, the Division and CEMEX entered into a Compliance Order on Consent to resolve Case Nos. 2023-177 and 2023-178 ("2023 COC"). As described in Paragraph 10 of the 2023 COC, CEMEX failed to demonstrate compliance with opacity limits, maintain and operate all affected facilities including associated air pollution control equipment in a manner consistent with good air pollution control practice for minimizing emissions including routine maintenance of and operational procedures performed on the baghouses in accordance with manufacturer's specifications and/or good engineering practices; limit opacity from AIRS Point 007 to 20% as required; monitor NO_x, CO, SO₂, THC, and volumetric flow using CEMS; employ control measures and operating procedures to minimize fugitive emissions as required; submit excess emissions reports timely; and report all deviations as required.

On May 14, 2025, the Division and CEMEX entered into a Compliance Order on Consent to resolve Case No. 2024-213 ("2024 COC"). As described in Paragraph 9 of the 2024 COC, CEMEX failed to demonstrate

compliance with opacity limits and to operate and maintain the baghouses in accordance with the manufacturer's specifications and/or good engineering practices; employ such control measures and operating procedures necessary to minimize fugitive particulate emissions into the atmosphere; maintain and operate all affected facilities including associated air pollution control equipment and monitoring equipment in a manner consistent with good air pollution control practices for minimizing emissions; monitor NO_x, SO₂, CO₂, O₂, and THC using CEMS as required; monitor Hg emissions as required; accurately report each deviation from permit requirements.

8. On September 11, 2024, Dave Huber, of the Division, conducted an inspection, pursuant to the Division's authority under § 25-7-111(2)(c), C.R.S., at the Facility for the purpose of determining compliance with Permit Number 95OPB0082, the Act and the Regulations. Based on the inspection, and a review of records related to the Facility, the Division issued a Compliance Advisory to CEMEX on October 7, 2025.
9. Based upon a review of information including the inspection and records related to the Facility, the Division has determined the following:
 - A. Pursuant to Permit Number 95OPB0082, Section II, Condition 1.6.1.1, adequate soil moisture must be maintained in topsoil and overburden to control emissions during removal. Pursuant to Permit Number 95OPB0082, Section II, Condition 1.6.1.3, emissions from material handling (i.e. removal, loading, and hauling) shall be controlled by watering at all times, except during below-freezing temperatures, unless natural moisture is sufficient to control emissions. A water application system (such as a sprinkler system or water truck) shall be operated to wet muck piles prior to loading, hauling and crushing. CEMEX reported dusting events at AIRS Point 025 on May 1, 2024 and May 3, 2024 after continuing to operate while the water truck was out of operation. On May 1, 2024 and May 3, 2024, CEMEX failed to maintain adequate soil moisture and failed to control material handling emissions, violating Permit Number 95OPB0082, Section II, Conditions 1.6.1.1 and 1.6.1.3.

- B. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.9.1, no owner or operator of a source shall allow or cause the emission into the atmosphere of any air pollutant which is in excess of 20% opacity. This standard is based on 24 consecutive opacity readings taken at 15-second intervals for six minutes. The approved reference test method for visible emissions measurement is EPA Method 9. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.22.1.3, opacity shall not exceed 20% at AIRS Point 007. Pursuant to Permit Number 95OPBO082, Section IV, Condition 16, CEMEX shall comply with the opacity limitations set forth in Regulation No. 1, §§ I. and II. Pursuant to AQCC Regulation 1 §, II.A.1, no owner or operator of a source should allow or cause the emission into the atmosphere of any air pollutant that is in excess of 20% opacity. CEMEX reported AIRS Point 007 emitted opacity of 39.2%, 48.4%, 39.0%, 27.9%, 22.3%, and 20.7% on February 9, 2024 from 14:00 - 14:35. On February 9, 2024, CEMEX failed to limit opacity at AIRS Point 007 to 20% opacity, violating Permit Number 95OPBO082, Section II, Conditions 10.9.1 and 10.22.1.3, Section IV, Condition 16 and AQCC Regulation 1 §, II.A.1.
- C. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.15.1, CEMEX shall install, certify and operate CEMS equipment for measuring opacity, SO₂, NO_x (including diluent gas either CO₂ or O₂), CO, and volumetric flow at AIRS Point 007. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.22.3, CEMEX shall maintain, calibrate and operate a CEMS to accurately measure SO₂, NO_x, and diluents, if diluent required. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.10, compliance with the NO_x limits at AIRS Point 007 shall be monitored using the NO_x CEMS. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.11, compliance with the CO annual emission limit at AIRS Point 007 shall be monitored using the CO CEMS. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.12, compliance with the SO₂ annual emission limit at AIRS Point 007 shall be monitored using the SO₂ CEMS. Pursuant to Permit Number 95OPBO082, Section II, Condition 10.13, compliance with the facility wide SO₂ limit shall be monitored using the daily SO₂ emission data from the CEMS. CEMEX reported

the following downtime:

- i. Fourth quarter of 2023 (“2023Q4”)
 - a. NO_x CEMS downtime of 7.05% (103 hours out of 1,461 operating hours);
 - b. Volumetric Flow CEMS downtime of 6.71% (98 hours out of 1,461 operating hours);
 - c. CO CEMS downtime of 7.05% (103 hours out of 1,461 operating hours); and
 - d. SO₂ CEMS downtime of 7.05% (103 hours out of 1,461 operating hours).
- ii. Second quarter of 2024 (“2024Q2”)
 - a. SO₂ CEMS downtime of 8.33% (164 hours out of 1,970 operating hours); and
 - b. O₂ (diluent) CEMS downtime of 5.12% (98 hours out of 1,915 operating hours).

As described above in Paragraphs 9.C.i and 9.C.ii, CEMEX failed to monitor NO_x, CO, SO₂, volumetric flow, and O₂ using CEMS as required during 2023Q4 and 2024Q2. Additionally, CEMEX failed to maintain daily SO₂ emissions data to demonstrate compliance with the 7 pounds per ton of material processed limit. Therefore, CEMEX violated Permit Number 95OPBO082, Section II, Conditions 10.10, 10.11, 10.12, 10.13, 10.15.1, and 10.22.3.

- D. Pursuant to Permit Number 95OPBO082, Section II, Condition 11.4.1, baghouses are required to be operated and maintained in accordance with Condition 19. Pursuant to Permit Number 95OPBO082, Section II, Condition 19, routine maintenance of and operational procedures performed on the baghouses shall be conducted in accordance with manufacturer’s specifications and/or good engineering practices. Pursuant to Permit Number 95OPBO082, Section II, Condition 11.5, these sources are subject to the opacity limits set forth in Condition 20. Pursuant to Permit Number 95OPBP082, Section II, Condition 20.3, compliance with opacity limits for baghouses is through the operation and

maintenance of the baghouses in accordance with Condition 19. CEMEX reported the following particulate emission events:

- i. Dusting from the grasshopper vent lines connected to dust collector 525-17 at AIRS Point 010 (P010, S051) on September 13, 2023. CEMEX identified holes along the vent line which allowed dust to escape the system; and
- ii. Dusting from AIRS Point 009 (P009) baghouse on May 1, 2024 due to holes in the dust collector housing.

As described above in Paragraphs 9.D.i and 9.D.ii, CEMEX has failed to demonstrate compliance with the opacity limits for baghouses and failed to maintain and operate all affected facilities including associated air pollution control equipment in a manner consistent with good air pollution control practice for minimizing emissions, including routine maintenance of and operational procedures performed on the baghouses in accordance with manufacturer's specifications and/or good engineering practices, violating Permit Number 95OPBO082, Section II, Conditions 11.4.1, 11.5, 19 and 20.3.

- E. Pursuant to Permit Number 95OPBO082, Section II, Condition 18.2.1, except for system breakdowns, repairs, calibration checks, and zero and span adjustments required under Condition 18.1.4, all continuous monitoring systems shall be in continuous operation and shall meet the minimum frequency of operation requirements. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.13.1.2 and Subpart LLL § 63.1348(b)(1)(ii), except for periods of startup and shutdown, monitoring system malfunctions, repairs associated with monitoring system malfunctions, and required monitoring system quality assurance or quality control activities (including, as applicable, calibration checks and required zero and span adjustments), CEMEX must operate the monitoring system and collect data at all required intervals at all times the affected source is operating. As described in Paragraphs 9.C, 9.H, 9.I, and 9.J, CEMEX failed to continuously monitor NO_x, CO, SO₂, volumetric flow, O₂, THC and mercury ("Hg") using CEMS during 2023Q4, first quarter of 2024 ("2024Q1"), and 2024Q2, as required, violating Permit Number

95OPB0082, Section II, Conditions 18.2.1, 22.13.1.2, and Subpart LLL § 63.1348(b)(1)(ii).

F. Pursuant to Permit Number 95OPB0082, Section II, Condition 22.15 and Subpart LLL § 63.1348(d), at all times CEMEX must operate and maintain any affected source, including associated air pollution control equipment and monitoring equipment, in a manner consistent with safety and good air pollution control practices for minimizing emissions. Determination of whether such operation and maintenance procedures are being used will be based on information available to the Administrator which may include, but is not limited to, monitoring results, review of operation and maintenance procedures, review of operation and maintenance records, and inspection of the source. Pursuant to Permit Number 95OPB0082, Section IV, Condition 9, CEMEX shall employ such control measures and operating procedures as are necessary to minimize fugitive particulate emissions into the atmosphere. CEMEX reported the following particulate emission events:

- i. Dusting from the Finish Mill Separator's Fresh Air Damper at AIRS Point 031 (P012, S065) on August 7, 2023 as the fresh air damper remained open after the baghouse was turned off;
- ii. Dusting from the grasshopper vent lines connected to dust collector 525-17 at AIRS Point 010 (S051, P010) on September 13, 2023, as described in Paragraph 9.D.i;
- iii. Dusting from vent located on the cooler room roof at AIRS Point 008 (P008) on September 13, 2023.
- iv. A stream of dust from a door that was left propped open on the top of the south side of the A Frame at AIRS Point 009 (P009) on September 26, 2023;
- v. Dusting from the kiln hood at AIRS Point 007 (P007, S016) on November 14, 2023;
- vi. Dusting from the top of the southeast end of the cement silos at AIRS Point 013 (P013) on November 27, 2023. The fugitive dust resulted from the lines to the silos and not from the silos or baghouses;

- vii. Dust released from the South Bay Door of A-Frame at AIRS Points 009 (P009) and 010 (P010) when the door was left open on January 26, 2024;
- viii. Dust at the top of the Homogenizing Silo at AIRS Point 006 (S014) on April 2, 2024;
- ix. Dusting from baghouse on Point 009 (P009) due to moisture inside system causing holes in housing on May 1, 2024, as described in Paragraph 9.D.ii; and
- x. Dust from the A-frame door at AIRS Points 009 (P009) and 010 (P010) on when both A-frame doors were open creating a wind tunnel effect on June 25, 2024.

As described above in Paragraphs 9.F.i through 9.F.x, CEMEX failed to minimize fugitive particulate emissions into the atmosphere and to maintain and operate all affected facilities including associated air pollution control equipment and monitoring equipment, in a manner consistent with safety and good air pollution control practices for minimizing emissions, violating Permit Number 95OPBO082, Section II, Condition 22.15 and Subpart LLL § 63.1348(d).

- G. Pursuant to Permit Number 95OPBO082, Section II, Condition 3.5.1.5, the stockpile work area on which the front-end loaders operate shall be treated with chemical dust suppressants and/or water to minimize the generation of fugitive emissions. CEMEX reported a large amount of dusting on January 10, 2024, when winds picked up material from un-crusted piles on the patio. Additionally, material deliveries were not suspended until later in the day and winds took large amounts of gypsum as it was unloaded near 6-belt causing dusting. On January 10, 2024, CEMEX failed to minimize the generation of fugitive emissions, violating Permit Number 95OPBO082, Section II, Condition 3.5.1.5.
- H. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.20 and Subpart LLL § 63.1349(b)(4)(i), CEMEX must operate a CEMS in accordance with the requirements in Subpart LLL § 63.1350(i) (Condition 22.35). Pursuant to Permit Number 95OPBO082, Section II, Condition 22.35 and Subpart LLL § 63.1350(i), CEMEX must continually monitor THC. Pursuant to

Permit Number 95OPBO082, Section II, Condition 22.36 and Subpart LLL § 63.1350(j), if CEMEX is complying with the total organic HAP emissions limits CEMEX must continuously monitor THC according to 63.1350(i)(1) and (2) (Conditions 22.35.1 and 22.35.2). CEMEX reported THC downtime of 5.22% (100 hours out of 1,915 operating hours) during 2024Q2. CEMEX failed to monitor THC emissions from AIRS Point 007 as required during the 2024Q2, violating Permit Number 95OPBO082, Section II, Conditions 22.20, 22.35, 22.36, and Subpart LLL §§ 63.1349(b)(4)(i) and 63.1350.

- I. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.21 and Subpart LLL § 63.1349(b)(5), if CEMEX is subject to limitations on Hg emissions, CEMEX must operate an Hg CEMS or a sorbent trap monitoring system in accordance with the requirements of Subpart LLL § 63.1350(k) (Condition 22.37). CEMEX operates a sorbent trap monitoring system. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.13.6, if CEMEX is subject to limitations on Hg emissions in Subpart LLL § 63.1343(b), CEMEX must demonstrate compliance using the monitoring methods and procedures in Subpart LLL § 63.1350(k) (Condition 22.37). Pursuant to Permit Number 95OPBO082, Section II, Condition 22.37 and Subpart LLL § 63.1350(k), if CEMEX has a kiln subject to an emissions limitation on Hg emissions CEMEX must install and operate an Hg CEMS or an integrated sorbent trap monitoring system. CEMEX must monitor Hg emissions continuously in accordance with Subpart LLL § 63.1350(k)(1) through (5). CEMEX reported 10.65% downtime (124 hours out of 1,164 operating hours) during 2024Q1 and 14.47% (277 hours out of 1,915 operating hours) during 2024Q2 for the Hg sorbent trap monitoring system. CEMEX failed to monitor Hg emissions as required during 2024Q1 and 2024Q2, violating Permit Number 95OPBO082, Section II, Conditions 22.13.6, 22.21, 22.37, and Subpart LLL §§ 63.1349(b)(5) and 63.1350(k).
- J. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.28 and Subpart LLL § 63.1350(a)(1), CEMEX must demonstrate compliance with this subpart on a continuous basis by meeting the requirements of this section. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.30 and Subpart LLL §

63.1350(a)(4), any instance where CEMEX fails to comply with the continuous monitoring requirements of this section is a violation.

- i. THC CEMS: Pursuant to Permit Number 95OPBP0082, Section II, Condition 22.23.9 and Subpart LLL § 63.1349(b)(7)(xi), to determine continuous compliance with the THC operating limit, CEMEX must record the THC CEMS output data for all periods when the process is operating and the THC CEMS is not out of control. As described in Paragraph 9.H, for the AIRS Point 007 THC CEMS, CEMEX failed to monitor the THC emissions as a surrogate for organic HAP from AIRS Point 007 using the CEMS as required during the 2024Q2, violating Permit Number 95OPBP082, Section II, Condition 22.23.9, Condition 22.28, Condition 22.30, and Subpart LLL §§ 63.1349(b)(7)(xi).
- ii. SO₂ CEMS: Pursuant to Permit Number 95OPBO082, Section II, Condition 22.22.1 and Subpart LLL § 63.1349(b)(6)(iii), CEMEX is subject to limitations on HCl emissions and may choose to monitor SO₂ emissions using a CEMS in accordance with the requirements of Subpart LLL § 63.1350(l)(3) (Condition 22.38.1). Pursuant to Permit Number 95OPBO082, Section II, Condition 22.38.1, if CEMEX is equipped with a wet or dry scrubber or tray tower, and chooses to monitor SO₂ emissions, CEMEX must monitor SO₂ emissions continually. Pursuant to Permit Number 95OPBO082, Section II, Condition 22.24.6 and Subpart LLL § 63.1349(b)(8)(viii), to determine continuous compliance with the SO₂ operating limit, CEMEX must record SO₂ CEMS output data for all periods when the process is operating and the SO₂ CEMS is not out of control. As described in Paragraphs 9.C.i and 9.C.ii, CEMEX failed to monitor the SO₂ emissions from AIRS Point 007 using the CEMS as required during 2023Q4 and 2024Q2, violating Permit Number 95OPBO082, Section II, Conditions 22.22.1, 22.24.6, 22.28, 22.30, and 22.38.1,

- and Subpart LLL §§ 63.1349(b)(6)(iii), 63.1349(b)(8)(viii), and 63.1350.
 - iii. Hg: As described in Paragraph 9.I, CEMEX failed to monitor Hg emissions as required during 2024Q1 and 2024Q2, violating Permit Number 95OPBO082, Section II, Conditions 22.28 and 22.30, and Subpart LLL § 63.1350(a).
 - iv. NO_x, O₂, CO CEMS: As described in Paragraphs 9.C and 9.E, CEMEX failed to monitor NO_x, O₂, CO using CEMS as required during 2023Q4 and 2024Q2, violating Permit Number 95OPBO082, Section II, Conditions 22.28 and 22.30, and Subpart LLL § 63.1350(a).
- K. Pursuant to Permit Number 95OPBO082, Section II, Condition 23.2.1.1, excursions for the purposes of reporting for all sources except the kiln (AIRS Point 007) include, for visible emissions any calendar day (midnight to midnight) in which visible emissions are observed. Pursuant to Permit Number 95OPBO082, Section II, Condition 23.2.3, excursions shall be reported as required by Section IV, Conditions 21 and 22.d of this permit. Pursuant to Permit Number 95OPBO082, Section II, Condition 23.5, the reports required by Section IV, Condition 22.d, shall contain the information specified in Appendix B of the permit. Pursuant to Permit Number 95OPBO082, Section IV, Condition 21, the permittee shall promptly report any deviation from permit requirements. Pursuant to Permit Number 95OPBO082, Section IV, Condition 22.d, all instances of deviations from any permit requirements must be clearly identified in such reports. For the dusting events described in Paragraph 9.D, CEMEX failed to report the events as Compliance Assurance Monitoring (“CAM”) excursions (Condition 23) in the Semi-annual report (“SAR”) received on August 1, 2024. CEMEX submitted the 2023Q4 Kiln Cooler & Dryer EERs after the due date and did not report the late EERs in the SAR received on August 1, 2024. As described in Table 2 below, CEMEX also failed to accurately report deviations from permit requirements in the reports referenced below. CEMEX failed to accurately report each deviation from permit requirements for the second half of 2023 SAR, and first half of 2024 SAR, violating Permit Number 95OPBO082, Section II,

Conditions 23.2.3 and 23.5, and Section IV, Conditions 21 and 22.d.

Table 2: Reportable Deviations from Permit Requirements

AIRS Point	Description	SAR Received Date
007	Failed to report excessive downtime for Hg, SO ₂ , O ₂ , THC CEMS during 2024Q1 and 2024Q2.	8/1/2024
007	Failed to report the 6 six-minute opacity events described in Paragraph 9.B.	8/1/2024
025	CEMEX failed to report the dusting event at Dowe Flats on 5/1/2024 described in Paragraph 9.A.	8/1/2024
025	For the dusting event at Dowe Flats on 5/3/2024 described in Paragraph 9.A, CEMEX failed to identify Conditions 1.6.1.1 and 1.6.1.3 when reporting and incorrectly reported Conditions 1.6.2.1 through 1.6.2.5.	8/1/2024
009	For the dusting event from the baghouse on Point 009 on 5/1/2024 described in Paragraph 9.D.ii, CEMEX failed to identify Conditions 11.4.1, 22.15, 23.2.3 when reporting.	8/1/2024
007	For the excessive downtime for CO, NO _x , SO ₂ , and volumetric flow CEMs during 2023Q4 as described in Paragraph 9.C, CEMEX failed to identify Conditions 10.10, 10.11, 10.13, 10.15, 10.22.3, 18.2, 22.13, 22.24, 22.38 when reporting.	2/1/2024
010	For the dusting event on 9/13/2023 described in Paragraph 9.D.i, CEMEX failed to identify Conditions 11.4.1 and 23.2.3	2/1/2024
009 and 010	For the dusting event on 1/10/2024 described in Paragraph 9.G, CEMEX failed to identify Condition 3.5.1.5 when reporting and incorrectly reported Condition 1.6.4.	8/1/2024
009 and 010	For the dusting event on 1/26/2024 described in Paragraph 9.F.vii, CEMEX failed to identify Condition 22.15 when reporting and incorrectly reported Condition 22.33.	8/1/2024
009 and 010	For the dusting event on 6/25/2024 described in Paragraph 9.F.x, CEMEX failed to identify Condition 22.15 when reporting and incorrectly reported Condition 22.33.	8/1/2024

10. The Division and CEMEX entered into settlement discussions for the violations as determined by the Division. The Parties reached a settlement that is detailed in this Consent Order.

IV. Order and Agreement

Based on the foregoing factual and legal determinations, pursuant to its authority under § 25-7-115, C.R.S., and as a result of the violations cited herein, the Division orders CEMEX to comply with all provisions of this Consent Order, including all requirements set forth below.

11. CEMEX agrees to the terms and conditions of this Consent Order. CEMEX agrees that this Consent Order constitutes an order issued pursuant to § 25-7-115, C.R.S., and is an enforceable requirement of Part 1 of the Act. CEMEX also agrees not to challenge directly or collaterally, in any judicial or administrative proceeding brought by the Division to enforce this Consent Order or by CEMEX against the Division:
 - A. the issuance of this Consent Order;
 - B. the factual and legal determinations made by the Division herein; and
 - C. the Division's authority to bring, or the court's jurisdiction to hear, any action to enforce the terms of this Consent Order under the Act.
12. Notwithstanding the above, CEMEX does not admit to any of the factual or legal determinations made by the Division herein, and any action undertaken by CEMEX pursuant to this Consent Order shall not constitute an admission of liability by CEMEX with respect to the condition of the Facility.

Compliance Requirements

13. Effective immediately, and without limitation, CEMEX shall comply with Permit Number 95OPBO082, Subpart LLL, the Act and the Regulations in the regulation and control of air pollutants.

Administrative Penalty Requirements

14. Based upon the factors set forth in § 25-7-122, C.R.S., the Division has determined an administrative penalty in the amount of **Eight Hundred Fifty-Five Thousand Dollars (\$855,000.00)** against CEMEX is appropriate and consistent with the Division's policies for violations of the Act and the Regulations cited in Section III of this Consent Order. CEMEX agrees to pay the sum of **Eight Hundred Fifty-Five Thousand Dollars (\$855,000.00)** in administrative penalties. Payment is due within thirty (30) calendar days of the effective date of this Consent Order by certified, corporate or cashier's check drawn to the order of "Colorado Department of Public Health and Environment" and delivered to the attention of the Enforcement Unit Supervisor, Air Pollution Control Division, 4300 Cherry Creek Drive South, APCD-SS-B1, Denver, Colorado 80246-1530.

V. Scope and Effect of Consent Order

15. The Parties agree and acknowledge that this Consent Order constitutes a full and final settlement of the violations cited herein. This Consent Order is final agency action. CEMEX agrees not to challenge the terms and conditions of this Consent Order in any proceeding before any administrative body or any judicial forum, whether by way of direct judicial review or collateral challenge.
16. This Consent Order shall be enforceable by either party in the same manner as if the Division had entered this Consent Order without agreement by CEMEX. The Parties agree that any violation of the provisions of this Consent Order by CEMEX concerning the Act, or the Regulations, shall be a violation of a final order of the Division for the purposes of §§ 25-7-115, 121, and 122, C.R.S., and may result in the assessment of civil penalties consistent with § 25-7-115, C.R.S., per day for each day of such violation.
17. The Parties' obligations under this Consent Order are limited to the matters expressly stated herein or in approved submissions required hereunder. All submissions made pursuant to this Consent Order are

incorporated into this Consent Order and become enforceable under the terms of this Consent Order as of the date of approval by the Division.

18. The Division's approval of any submission, standard, or action under this Consent Order shall not constitute a defense to, or an excuse for, any prior violation of any requirement under the Act, the Regulations, or any subsequent violation of any requirement of this Consent Order, the Act, or the Regulations.
19. Entering into this settlement shall not constitute an admission of violation of the air quality laws by CEMEX, nor shall the Division or any third party infer it to be such an admission by CEMEX in any administrative or judicial proceeding. Notwithstanding the foregoing or anything in this Consent Order to the contrary, the described violation will constitute part of CEMEX's compliance history for any purpose for which such history is relevant, including considering the violation described above in assessing a penalty for any subsequent violations, in accordance with the provisions of § 25-7-122, C.R.S., against CEMEX.
20. CEMEX shall comply with all applicable Federal, State, and/or local laws and regulations and shall obtain all necessary approvals or permits to conduct the investigation and remedial activities required by this Consent Order and perform its obligations required hereunder. The Division makes no representation with respect to approval and permits required by Federal, State, or local laws or regulations other than those specifically referred to herein.
21. Nothing herein shall be construed as prohibiting, altering, or in any way limiting the ability of the Division to seek any other remedies or sanctions available by virtue of CEMEX's violation of this Consent Order or of the statutes and regulations upon which this Consent Order is based, or for CEMEX's violation of any applicable provision of law.

VI. Limitation Releases and Reservation of Rights and Liability

22. Upon the effective date of this Consent Order, and during its term, this Consent Order shall stand in lieu of any other enforcement action by the

Division with respect to the violations cited herein. This Consent Order does not grant any release of liability for any violations, regardless of when they occurred, that are not cited in this Consent Order. The Division reserves the right to bring any action it deems necessary to enforce this Consent Order, including actions for penalties and/or injunctive relief.

23. Nothing in this Consent Order shall preclude the Division from imposing additional requirements necessary to protect human health or the environment and to effectuate the purposes of this Consent Order. Nor shall anything in this Consent Order preclude the Division from imposing additional requirements in the event that additional information is discovered that indicates such requirements are necessary to protect human health or the environment.
24. CEMEX reserves its rights and defenses regarding liability in any proceedings regarding the Facility other than proceedings to enforce this Consent Order.
25. Upon the effective date of this Consent Order, CEMEX releases and covenants not to sue the State of Colorado as to all common law or statutory claims or counterclaims arising from, or relating to, the violations of the Act or the Regulations specifically addressed herein.
26. CEMEX shall not seek to hold the State of Colorado or its employees, agents or representatives liable for any injuries or damages to persons or property resulting from acts or omissions of CEMEX, or those acting for or on behalf of CEMEX, including its officers, employees, agents, successors, representatives, contractors or consultants in carrying out activities pursuant to this Consent Order. CEMEX shall not hold out the State of Colorado or its employees, agents or representatives as a party to any contract entered into by CEMEX in carrying out activities pursuant to this Consent Order. Nothing in this Consent Order shall constitute an express or implied waiver of immunity otherwise applicable to the State of Colorado, its employees, agents, or representatives.
27. The Division reserves the right to bring any action or to seek civil or administrative penalties for any past, present, or future violations of the Act and the Regulations, not specifically addressed herein. Further, the

Division has the right to bring any action to enforce this Consent Order and to seek authorized penalties for any violation of this Consent Order.

VII. Force Majeure

28. CEMEX shall perform the requirements of this Consent Order within the schedules and time limits set forth herein and in any approved plan unless the performance is prevented or delayed by events that constitute a force majeure. A force majeure is defined as any event arising from causes which are not reasonably foreseeable, which are beyond the control of CEMEX, and which cannot be overcome by due diligence.
29. Unless otherwise provided in the Act or the Regulations, within seventy-two (72) hours of the time that CEMEX knows or has reason to know of the occurrence of any event which CEMEX has reason to believe may prevent CEMEX from timely compliance with any requirement under this Consent Order, CEMEX shall provide verbal notification to the Division. Within seven (7) calendar days of the time that CEMEX knows or has reason to know of the occurrence of such event, CEMEX shall submit to the Division a written description of the event causing the delay, the reasons for and the expected duration of the delay, and actions which will be taken to mitigate the duration of the delay.
30. The burden of proving that any delay was caused by a force majeure shall at all times rest with CEMEX. If the Division agrees that a force majeure has occurred, the Division will so notify CEMEX. The Division will also approve or disapprove of CEMEX's proposed actions for mitigating the delay. If the Division does not agree that a force majeure has occurred, or if the Division disapproves of CEMEX's proposed actions for mitigating the delay, it shall provide a written explanation of its determination to CEMEX. Pursuant to the Dispute Resolution section, within fifteen (15) calendar days of receipt of the explanation, CEMEX may file an objection.
31. Delay in the achievement of one requirement shall not necessarily justify or excuse delay in the achievement of subsequent requirements. In the event any performance under this Consent Order is found to have been delayed by a force majeure, CEMEX shall perform the requirements

of this Consent Order that were delayed by the force majeure with all due diligence.

VIII. Dispute Resolution

32. If the Division determines that additional requirements are necessary pursuant to paragraph 23; that a violation of this Consent Order has occurred, that a force majeure has not occurred; or that the actions taken by CEMEX to mitigate the delay caused by a force majeure are inadequate, the Division shall provide a written explanation of its determination to CEMEX. Within fifteen (15) calendar days of receipt of the Division's determination, CEMEX shall:

- A. Submit a notice of acceptance of the determination; or
- B. Submit a notice of dispute of the determination.

If CEMEX fails to submit either of the above notices within the specified time, it will be deemed to have accepted the Division's determination.

33. If CEMEX files any notice of dispute pursuant to paragraph 32, the notice shall specify the particular matters in the Division's determination that CEMEX seeks to dispute, and the basis for the dispute. Matters not identified in the notice of dispute shall be deemed accepted by CEMEX. The Division and CEMEX shall have thirty (30) calendar days from the receipt by the Division of the notification of dispute to reach an agreement. If agreement cannot be reached on all issues within this thirty (30) day period, the Division shall confirm or modify its decision within an additional fourteen (14) days, and the confirmed or modified decision shall be deemed effective and subject to appeal in accordance with the Act and the Colorado Administrative Procedure Act, Article 4, Title 24, Colorado Revised Statutes.

IX. Notices

34. Unless otherwise specified, any report, notice or other communication required under the Consent Order shall be sent to:

For the Division:

Enforcement Unit Supervisor
Colorado Department of Public Health and Environment
APCD-SS-B1-1400
4300 Cherry Creek Drive South
Denver, Colorado 80246-1530

For CEMEX:

CEMEX Construction Materials South, LLC
Attn: Plant Manager
5134 Ute Highway
Longmont, Colorado 80503

X. Obligations Unaffected by Bankruptcy

35. The obligations set forth herein are based on the Division's police and regulatory authority. These obligations require specific performance by CEMEX of corrective actions carefully designed to prevent on-going or future harm to public health or the environment, or both. Enforcement of these obligations is not stayed by a petition in bankruptcy. CEMEX agrees that the penalties set forth in this Consent Order are not in compensation of actual pecuniary loss. Further, the obligations imposed by this Consent Order are necessary for CEMEX and the Facility to achieve and maintain compliance with State law.

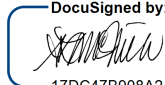
XI. Modifications

36. This Consent Order may be modified only upon mutual written agreement of the Parties.

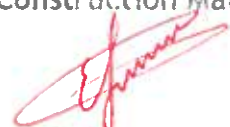
XII. Binding Effect, Authorization to Sign and Effective Date

37. This Consent Order is binding upon the Parties to this Consent Order and their corporate subsidiaries or parents, their officers, directors, agents, attorneys, employees, contractors, successors in interest, affiliates and assigns. The undersigned warrant that they are authorized to bind legally their respective principals to this Consent Order, and that the Parties have the authority to enter into this Consent Order. This Consent Order shall be effective upon the date signed by the last party. In the event that a party does not sign this Consent Order within thirty (30) calendar days of the other party's signature, this Consent Order becomes null and void. This Consent Order may be executed in multiple counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same Consent Order.

Colorado Department of Public Health and Environment

DocuSigned by:

 By: 17DC47B908A249B... Date: 5/11/2026
 Shannon McMillan
 Compliance and Enforcement Program Manager
 Air Pollution Control Division

CEMEX Construction Materials South, LLC


 By: _____ Date: 5/4/26
 Name: ERNESTO ALONSO FELIX SANDOVAL
 Title: SVP CEMENT OPERATIONS & TECHNICAL

cc: Shannon McMillan, APCD
 David Huber, APCD
 Sarah Acosta, APCD
 Heather Wuollet, APCD
 Beth Pilson, APCD
 Paul Carr, APCD
 Jeffrey Bishop, APCD

Tom Lovell, APCD
Elizabeth Scherer, APCD
Ben Cappa, APCD
Jason Long, APCD
Scott Patefield, EPA (Region VIII)
Chris Andrade, EPA (Region VIII)
Robyn Wille, Attorney General's Office
File